

Anoop Kumar v. State of U.P. and Another

High Court of Judicature at Allahabad, Lucknow Bench · Single Judge · 29 November 2023 · Application U/S 482 No. 11604 of 2023 · **Notice issued; coercive steps stayed; petition pending**

HEADNOTE

A petition under Section 482 CrPC to quash a charge-sheet and sessions trial under Section 135 of the Electricity Act, 2003, for want of an inspection report under Provision 8.5 of the Electricity Supply Code, 2005, was not decided on merits. On 29 November 2023 the Court issued notice, directed the investigating officer to file a personal affidavit, and ordered that no coercive action be taken. On 2 July 2026 four weeks were given for a counter-affidavit and the interim order was extended.

FACTUAL SUMMARY

Anoop Kumar sought quashing of charge-sheet No. 52 of 9 March 2016 and Special Sessions Trial No. 65 of 2017 before the Special Judge (EC Act), Unnao, both arising from a prosecution under Section 135 of the Electricity Act, 2003 at Police Station Bangarmau. He contended that the case could not proceed without the inspection report contemplated by Provision 8.5 of Chapter 8 of the Electricity Supply Code, 2005, and relied on interim protection granted on 9 November 2023 in a similar application.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

Section 135 quashing petition adjourned with interim protection

HOLDING

On 29 November 2023 the Court held only that the challenge required consideration. It issued notice to opposite party No. 2, directed the investigating officer to file a personal affidavit, listed the petition with Application U/S 482 No. 11139 of 2023, and ordered that no coercive action be taken until the next date. It did not decide whether absence of an inspection report under Provision 8.5 of the Supply Code, 2005 bars the Section 135 prosecution. On 2 July 2026 the Court granted four weeks and no more for a counter-affidavit, directed listing thereafter, and extended any interim order. ¶ 1-3

PRINCIPLE TAGS

procedural-listing-no-construction

Neither order construes Section 135 of the Electricity Act, 2003 or Provision 8.5 of the Electricity Supply Code, 2005. The petition remains pending, with notice, an investigating-officer affidavit, and a continuing bar on coercive action while the counter-affidavit is awaited. ¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE SECTION 135 CHARGE-SHEET AND TRIAL CAN CONTINUE WITHOUT THE INSPECTION REPORT REFERRED TO IN PROVISION 8.5 OF CHAPTER 8 OF THE ELECTRICITY SUPPLY CODE, 2005.

The objection was treated as arguable and protected by an interim order. It was neither accepted nor rejected. As on 2 July 2026 the State still had time to file a counter-affidavit. ¶ 1-3

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
Application U/S 482 No. 11139 of 2023 Application U/S 482 No. 11139 of 2023,			Saurabh Lavania, J.	followed

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
-----------	-------------	-------------	----------	-----------

order dated 09.11.2023				
---------------------------	--	--	--	--

SCJ-3386 · Anoop Kumar v. State of U.P. and Another · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.